

SENATE BILL 2037

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8 and Title 39, relative to the "One America
Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "One America Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 3, Part 20, is amended by
adding the following new section:

(a) Notwithstanding another law to the contrary, every person who has resided in
this state for a period of more than thirty (30) days and who is not lawfully present in the
United States must:

- (1) Register with the department of safety; and
- (2) Submit to an interview with the department of safety.

(b) The department of safety must decide within thirty (30) days of such
interview whether each such person is eligible to receive a one-year visa for re-entry into
the United States and to this state and shall promptly notify each such person of the
decision.

(c) Upon receipt of a notice of eligibility from the department of safety, an eligible
person must depart from the United States within ninety (90) days and remain outside
the United States for a period of at least thirty (30) days. Thereafter, the person may
use the one-year visa to re-enter the United States and this state lawfully. If the eligible
person completes the one-year period and does not commit a criminal offense within
such period, the person shall be eligible to apply for a permanent resident card, pursuant
to the Immigration and Nationality Act, 8 U.S.C. § 1101 et seq.

(d) A person who receives a notice from the department of safety that such person is not eligible for a one-year visa under this section must leave the United States within thirty (30) days of the receipt of such notice.

SECTION 3. This act takes effect on the thirtieth day following the occurrence of the United States Citizenship and Immigration Services establishing rules and regulations providing for the implementation of this act, the public welfare requiring it. The commissioner of safety shall notify in writing the Tennessee code commission of the establishment of such occurrence and what date is the thirtieth day following such occurrence.